

# Maternity & Paternity Benefit Policy Guidelines

Statutory Entitlements, Adoption & Surrogacy Leave, and Return-to-Work Provisions

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## Section 1: Paid Maternity Leave Schedule

Female employees who have completed at least 80 days of service in the preceding 12 months are entitled to 26 weeks (182 calendar days) of fully paid maternity leave.

- A maximum of 8 weeks can be taken prior to the expected delivery date; the remaining 18 weeks are taken post-delivery.
- For employees having 2 or more surviving children, paid maternity leave entitlement is 12 weeks, with a maximum of 6 weeks pre-delivery.
- Employees experiencing a miscarriage or medical termination of pregnancy are entitled to 6 weeks of paid leave immediately following the event.

## Section 2: Adoption & Commissioning (Surrogacy) Leave

A commissioning mother (through surrogacy) or an employee legally adopting a child below the age of 3 months is entitled to 12 weeks of fully paid leave from the date the child is handed over to the employee.

## Section 3: Paternity Leave Policy

Eligible male employees receive 2 weeks (10 business days) of fully paid paternity leave, which must be utilized within 6 months of the child's birth or adoption date. Leave may be split into two blocks with manager approval.

## Section 4: Post-Maternity Support & Return-to-Work Provisions

- **Creche Benefit:** Employees with children under age 6 may access the company-empanelled creche facility, or a monthly reimbursement of \$150 USD where no facility is available locally.
- **Nursing Breaks:** Two paid 30-minute nursing breaks per workday for 12 months following the return-to-work date.
- **Phased Return:** Returning employees may request up to 8 weeks of remote or reduced-hours work, subject to role eligibility, without loss of grade or pay.
- **Written Intimation:** The employer must communicate available benefits in writing at the time the employee proceeds on maternity leave, per statutory requirement.

## Section 5: Job Protection & Prohibition on Dismissal

It is unlawful to dismiss or vary the terms of employment of a woman to her disadvantage on account of pregnancy, maternity leave, or related medical absence. Any termination during the protected period requires documented, non-pregnancy-related cause and mandatory review by the CHRO's office before it can take effect.

## Section 6: Medical Bonus & Prenatal Care Support

Employees who do not receive free prenatal and postnatal care through the group health plan's maternity sub-limit are entitled to a one-time medical bonus of \$500 USD, disbursed with the first maternity-leave payroll cycle. Employees are additionally granted paid time off for a minimum of 6 antenatal medical appointments during the pregnancy without deduction from standard sick or casual leave balances.

## Section 7: Notification & Documentation Requirements

Employees intending to take maternity leave must notify their manager and HR in writing at least 8 weeks before the expected leave start date, accompanied by a physician's certificate confirming the expected delivery date. Paternity and adoption leave requests require at least 2 weeks' notice along with the relevant birth, adoption, or surrogacy documentation. Late notice arising from a medical emergency is accommodated retroactively upon submission of supporting medical documentation.

## Section 8: Interaction With Other Leave Types

Maternity and paternity leave run concurrently with, not in addition to, any applicable statutory family and medical leave entitlement in the employee's jurisdiction, with the employee receiving whichever combination of pay and duration is more generous. Accrued vacation and sick leave continue to accrue during paid maternity and paternity leave and may be used to extend the leave period once statutory paid leave is exhausted, subject to manager approval.

## Section 9: Crèche Reimbursement & Extended Family Care Leave

| Benefit                      | Eligibility                     | Value / Duration                 |
|------------------------------|---------------------------------|----------------------------------|
| Crèche reimbursement         | Employees with children under 6 | \$150 USD/month, up to 36 months |
| Extended unpaid family leave | 1+ year of continuous service   | Up to 90 additional unpaid days  |
| Elder / dependent care leave | All employees                   | 5 paid days per calendar year    |

## Section 10: Manager Obligations & Confidentiality

Managers receiving notice of an employee's pregnancy or intended parental leave must keep the information confidential outside the immediate need-to-know group (HR and, where relevant, the employee's designated backup), must not factor the leave into performance ratings or project staffing decisions in a way that disadvantages the employee, and are required to complete a documented transition plan with the employee at least 4 weeks before the leave start date.

## Section 11: Statutory Basis & Employer Record-Keeping Obligations

This policy is administered consistently with applicable maternity benefit and family leave statute in each jurisdiction where the company operates, and the more generous of the statutory or company-policy entitlement always applies. HR maintains a leave register for every maternity, paternity, and adoption leave case, recording notice date, leave start and end dates, pay disbursed, and return-to-work confirmation, retained for the statutory record-keeping period applicable in that jurisdiction (typically not less than 3 years).

Managers found to have discouraged an employee from taking their full statutory entitlement, whether explicitly or through informal pressure, are subject to disciplinary action under the Progressive Disciplinary Policy Framework, and the matter is reported to the CHRO's office regardless of whether the affected employee files a formal grievance.

## Section 12: Frequently Encountered Scenarios

| Scenario                                                      | Applicable Provision                                                                              |
|---------------------------------------------------------------|---------------------------------------------------------------------------------------------------|
| Employee's due date shifts and she wants to start leave later | Permitted with updated physician certificate; total entitlement unchanged                         |
| Second child born within 2 years of first                     | 12-week entitlement applies (2+ surviving children rule)                                          |
| Same-sex couple, one partner gives birth                      | Birth partner receives maternity leave; other partner receives paternity leave                    |
| Contractor becomes pregnant mid-contract                      | Statutory minimum applies per local law; company policy applies only after conversion to employee |

Scenarios not explicitly covered above are escalated to the HRBP for a documented determination, referencing both this policy and the statutory framework applicable in the employee's work location, and the determination is logged for consistency in future similar cases.